

**IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,**

vs.

Case No.: 2025-CC-000714

**SYLVIA HERNANDEZ AVALOS, FRANK J. AVALOS
and ANY UNKNOWN PARTY(s) IN POSSESSION,
Defendants.**

ORDER ON MOTION FOR DEFAULT FOR FAILURE TO PAY RENT

THIS CAUSE came on to be heard on the 2nd day of September, 2025, on the Plaintiff's Motion for Default for Failure to Pay Rent filed on July 3, 2025. This hearing was duly noticed on July 7, 2025. Present at the hearing was the Plaintiff through counsel and Defendants through Counsel. Plaintiff produced Cheryl Peake as a witness to the substance of the allegations. The Defendants, by and through their undersigned counsel, filed pleadings in response to the complaint, however failed to pay money into the Registry of the Court in order to present their defenses. On the evidence adduced at the hearing, the Court finds:

ORDERED and ADJUDGED as follows:

1. Plaintiff's action for possession of mobile home park premises pursuant to § 723.061, Florida Statutes, is based upon failure to pay rent.
2. The monthly rent for the premises is \$821.00, plus utility expenses.
3. As of the date of this hearing, the Defendants failed to pay rent to the Plaintiff and owe the sum of \$8,610.00 to the Plaintiff in rent.
4. The Defendants are directed to pay the sum of \$8,610.00 into the Registry of the Court (plus any registry fees) by September 9, 2025 at 4:30 p.m., in order to avoid default and present any defenses stated in the pleadings of Defendants.
5. If the Defendants fail to pay this sum into the Registry of the Court as ordered, the Plaintiff will be entitled to an immediate default pursuant to section 723.063.
6. If the Defendants pay the accrued rent into the Registry of the Court as directed by this Order, they shall thereafter pay rent in the sum of \$821.00 plus all Clerk Registry fees commencing the month of October 2025 by the fifth of each month thereafter until further order of this Court.

7. The Court reserves a determination of payment of any funds deposited by the Defendants into the Registry of the Clerk of the Court.

DONE AND ORDERED at Manatee County, Bradenton, Florida on this 4 day of Sept., 2025.



HONORABLE RENEE INMAN
COUNTY COURT JUDGE

cc: William C. Price, III, Esq. 522 12th Street W., Bradenton, FL 34205;
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ANY UNKNOWN PARTY(s) IN POSSESSION via U.S. Mail at 900 - 9th Avenue East
Lot #70, Palmetto, Florida, 34221